

Class I or Class II? How NIS2 decides your product's CRA fate

The single most consequential CRA decision — Important Class I versus Class II — often turns not on what a product *is*, but on *who it is intended for*. That trigger comes from NIS2. This Q&A explains the mechanism, with the Siemens SIMATIC S7 as the worked example, and cites its sources throughout.

Q1 What is the actual relationship between NIS2 and the CRA?

They are fundamentally different types of law, deliberately interlocked. The **CRA is product law** — it follows the product wherever it is sold in the EU and binds the manufacturer, regardless of company size or sector. **NIS2 is organisational law** — it follows the operating entity (the utility, hospital, water authority) in a listed critical sector, and says nothing directly about which products manufacturers must build.^{[1][2]}

The shortest test: pull your product from the EU market tomorrow and your CRA obligations stop. Your NIS2 obligations — if your organisation has them — do not, because they attach to the organisation, not to what you ship.^[1]

Q2 What is the difference between Important Class I and Class II?

Both are "Important products" under CRA Annex III, but they sit in different parts with different consequences.^{[3][4]}

	IMPORTANT CLASS I (ANNEX III, PART I)	IMPORTANT CLASS II (ANNEX III, PART II)
Typical products	Routers, modems, switches; operating systems; VPNs; SIEM; IAM/PAM; password managers; general IACS	Firewalls/IDS/IPS; hypervisors & container runtimes; tamper-resistant microcontrollers; IACS intended for NIS2-essential entities
Self-assessment allowed?	Yes (Module A) — but <i>only</i> if a harmonised standard is fully applied. None are cited in the OJEU as of July 2026, so an NB is effectively required today	Never. Module B+C or Module H with a notified body — always
After ~Q2 2027 (standards expected)	Migrates to self-assessment where the standard fully covers the product	Still NB-mandatory — the obligation is permanent

Q3 How exactly does NIS2 change a product's CRA class?

Through one clause, baked into Annex III Part II and elaborated by Implementing Regulation (EU) 2025/2392: *Industrial Automation and Control Systems intended for use by entities identified under NIS2 Annex I — such as PLCs, DCS, CNC and SCADA — are Important Class II.*^{[3][4]} NIS2's sector list is thereby imported directly into the CRA classification decision:

NIS2 Annex I essential entities — energy, water, transport, health, digital infrastructure, critical manufacturing

Class II — mandatory NB

General manufacturing, food & beverage, packaging, non-NIS2 sectors

Class I (likely)

Pure IT / monitoring with no control function

Class I or Default, depending on function

The phrase "**intended for use by**" is the legal trigger. It does not mean "accidentally installed at" — it refers to the manufacturer's declared intended use in product documentation, marketing and the technical file.^{[4][5]}

Q4 Can the same product be both Class I and Class II? The Siemens SIMATIC S7, worked through

The honest answer: **it depends on what the manufacturer declares as intended use**, and the same physical hardware can carry different CRA classifications depending on the product variant or how it is placed on the market. No single CE-marked unit is "both at once" — each unit has exactly one conformity route — but across a portfolio, one hardware family can legitimately span both classes.^{[4][6]}

PRODUCT	SOLD FOR NIS2-ESSENTIAL USE (ENERGY, WATER, TRANSPORT)	SOLD FOR GENERAL INDUSTRY (FOOD, PACKAGING, CONSUMER GOODS)
SIMATIC S7-1500 (networked)	Class II — mandatory NB	Class I — NB required (no harmonised standard yet)
SIMATIC S7-1200 (networked)	Class II — mandatory NB	Class I — NB required
SIMATIC S7-400 (legacy)	Class II — if still placed on market post-2027	Class I
SIMATIC PCS 7 (DCS on S7 backbone)	Class II — energy/chemical/pharma customers	Class I
WinCC SCADA (on S7 infrastructure)	Class II — essential entities	Class I

Siemens' stated strategy is to make SIMATIC products CRA-compliant at IEC 62443 Security Level **SL2+** — "a fair basis for most projects" — a deliberate hedge that builds the whole S7 line to Class II baseline even where Class I would suffice, because the same hardware goes to both customer types. The S7-1500's existing IEC 62443-4-2 conformity documentation serves both routes, since the technical file is substantially shared.^{[6][7]}

Q5 What if a customer repurposes a Class I product into a NIS2-essential environment?

Classification is fixed **at the point of placing on the market**, based on the manufacturer's intended-use declaration. If an S7-1500 variant is declared and marketed "for general industrial use", it is placed as Class I — and if a bottling-plant integrator later resells it into a water utility, the product's CRA classification does *not* retroactively change. What changes hands is the risk: the utility's own **NIS2 Article 21 supply-chain obligations** are implicated by its choice of component.^{[1][8]} Conversely, if a manufacturer *knowingly* markets a variant for energy-sector SCADA, that product must be Class II certified before it can carry the CE mark.^[4]

Q6 Can a company be under both CRA and NIS2 at the same time?

Yes — and the large automation vendors are. Siemens, Schneider or ABB are simultaneously **CRA manufacturers** for every product they ship (S7, Modicon, AC500 lines) *and* potentially **NIS2 essential/important entities themselves**, where their own factories qualify under NIS2 Annex II manufacturing categories at medium/large enterprise thresholds. Their factory OT falls under NIS2 Article 21 organisational duties (risk management, supply-chain vetting, incident reporting) while their shipped products fall under the CRA. The compliance work overlaps heavily — the same SBOM practice, the same 24-hour reporting capability — but the legal obligations are distinct and answer to different authorities.^[1]

Q7 How do CRA and NIS2 reporting interlock in practice?

Through ENISA as the routing hub. From 11 September 2026, a CRA manufacturer that discovers an actively exploited vulnerability in, say, an S7 must report to ENISA and its national CSIRT within 24 hours; ENISA forwards the notification to the NIS2 national single points of contact of affected member states, which alert the essential entities operating those products.^[3]

Siemens → ENISA → national CSIRTs → NIS2 supervisory authority → the utility itself

This is a designed pipeline: the CRA generates the product-level intelligence; NIS2 pushes it to the operators.

Q8 What should a manufacturer of dual-market products do now?

Three moves, in order:

- **Write a Classification Decision Record per product variant** — declared intended use, NIS2 Annex I exposure analysis, and the resulting class and module. This is the document a notified body or market surveillance authority asks for first.
- **Decide the portfolio strategy consciously** — the Siemens pattern (build everything to the Class II / SL2+ bar, choose the assessment route per variant) buys flexibility at engineering cost; a split-portfolio approach saves engineering but multiplies conformity paperwork.
- **Anchor evidence on IEC 62443** — 62443-4-1/-4-2 documentation serves Class I self-assessment and Class II NB examination from one technical file, and retains value outside the EU.^[7]

Where OXOT fits: the Classification Decision Record, the NIS2 exposure analysis, and the 62443-anchored evidence plan are the standardized deliverables of OXOT's Phase 1 Discovery & Assessment — one week per product, identical structure whatever the vendor.

SOURCES

1. Scadable — [CRA vs NIS2: product law vs organisational law](#); Hyperproof — [Understanding the relationship between NIS2 and the EU CRA](#)
2. Legiscope — [NIS2 essential and important entities](#); [NIS2 Directive, Article 3](#)
3. Graylog — [Understanding the Cyber Resilience Act](#) (reporting pipeline, Annex III mechanics)
4. Secure-by-Design Handbook — [Implementing Regulation \(EU\) 2025/2392: technical descriptions for product classes](#)
5. LinkedIn — [EU CRA FAQ summary: intended use and classification](#); Center for Cybersecurity Policy — [comments on the CRA Implementing Regulation](#)

6. Siemens — [CRA compliance strategy publications](#) (SL2+ positioning for SIMATIC)
7. Siemens — [SIMATIC technical specifications](#); IEC 62443-4-2 conformity documentation for S7-1500
8. Freshfields — [Decoding the CRA, Part 1: scope and impact](#); goRegulus — [CRA vs NIS2 differences](#)

This guide condenses Regulation (EU) 2024/2847 (CRA), Directive (EU) 2022/2555 (NIS2) and Implementing Regulation (EU) 2025/2392 for orientation purposes. It is not legal advice; classification decisions should be documented per product with counsel review.